

Defense Advisory Committee for Diversity and Inclusion (DACODAI) Support Performance Work Statement (PWS)

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1.0 INTRODUCTION

The Defense Advisory Committee for Diversity and Inclusion (DACODAI) requires management, logistical and records services, along with research and data analyses services, using both quantitative and qualitative analytical methodologies, to facilitate the DACODAI's role to provide the Secretary of Defense (SecDef) and Congress recommendations to improve racial/ethnic diversity, inclusion, and military equal opportunity for the U.S. Armed Forces.

2.0 BACKGROUND

The National Defense Authorization Act for Fiscal Year 2021 (NDAA FY2021), Section 551(d) called for the SecDef to report to the Committees on Armed Services of the Senate and the House of Representatives on the Defense Advisory Committee on Diversity and Inclusion in the Armed Services. The mission of the DACODAI is to examine and provide recommendations to improve racial/ethnic diversity, inclusion, and equal opportunity within the Department of Defense (DoD), with a primary focus on military personnel. The 17 December 2020 DoD Board on Diversity and Inclusion Report, Recommendations to Improve Racial, Ethnic Diversity in the U.S. Military, chartered on 23 October 2020, and highlighted the founding of an independent, long term Federal Advisory Committee (FAC), DACODAI, to provide autonomous, continuous review and assessment of the military's actions. Following an operational pause in early 2021, while the Secretary conducted a review of all DoD advisory committees, the DACODAI was approved on 14 September 2021 to begin operations until all on-boarding requirements have been included, to include ethics training and taking the oath of office.

The DACODAI receives guidance from the Under Secretary of Defense for Personnel and Readiness (USD (P&R)) regarding research topics and areas of interest. The Committee develops and provides advice and recommendations for the SecDef and the Deputy SecDef, through the USD (P&R) based on detailed research and analysis of data. DACODAI gathers information from multiple sources, to include briefings and written responses from DoD, Service-level military representatives, and subject matter experts. The Committee collects qualitative and quantitative data from focus groups and interactions with military members during installation visits. Additionally, the Committee examines peer-reviewed literature.

The DACODAI is comprised of voluntary and geographically separated members throughout the United States. On 14 September 2021, the SecDef approved the new Committee to provide recommendations to the DoD on topics related to improve racial/ethnic diversity, inclusion, and equal opportunity in the military. The Committee relies on management, logistical and records services along with research and data analyses services to comply with the Federal Advisory Committee Act (FACA), The Sunshine Act, and Federal regulations and DoD directives.

3.0 SCOPE

The Contractor shall provide the personnel, management, and materials necessary to provide a comprehensive program management, logistics, records management, research assistance, and data analytics. These resources are essential to support the planning and execution of initiatives outlined in section 2.0, the DACODAI Charter, and directives from the Secretary of Defense (SecDef). The primary objective is to enable the DACODAI in providing recommendations to the Secretary of Defense (SecDef) and Congress aimed at enhancing racial/ethnic diversity, fostering inclusion, and advancing military equal opportunity within the U.S. Armed Forces.

4.0 REQUIREMENTS

The Contractor shall furnish high-level management, and conduct research on 2-5 topics annually, conduct 5 military site visits per year, and actively contribute to all Committee meetings, encompassing but not limited to:

4.1 Collaborate with DACODAI Staff and members to conduct various research techniques and present qualitative and quantitative data analysis to fulfill DACODAI reporting requirements within the specified timeline. Submit all deliverables to the Contracting Officer Representative (COR), unless otherwise specified.

4.2 Provide subject matter expert advice and recommendations on diversity, inclusion, and equal opportunity initiatives within the Department of Defense.

4.3 Update and draft correspondences and documents pertinent to the Committee's charter and membership balance plan annually. Coordinate internal processes meticulously in alignment with Departmental directives for review and approval by the SecDef or designated authority.

4.4 Draft, package, and submit all annual reporting requirements to DACODAI's Designated Federal Officer (DFO) for formal coordination to the SecDef. Final draft of Annual Reporting Requirement to DACODAI completed no later than the end of the calendar year. Product provided should be of high standard with minimum errors.

4.5 Update the GSA FACA database website to meet the annual reporting obligations once per year, unless otherwise specified.

4.6 Facilitate operational activities for all DACODAI's meetings:

4.6.1 Attends other meetings and seminars as required/requested by the Director.

4.6.2 Publish Meeting Agenda, Federal Register Notices, Prep Notes, Identification of Speakers and Prepare Speaker Slides for each Business Meeting and Administrative Sessions.

4.6.5 Prepare, develop, and publish all meeting agendas, read-ahead materials, and briefing materials as directed by Government management/staff in accordance with DoD Manual 5110.04-M, Volume 1, DoD Manual for Written Material, Correspondence Management. When

appropriate, use DoD organizational templates letterhead, and format, as prescribed by DoD guides, written guidance, examples, and/or specific direction. Product provided should be of high standard with minimum errors. Advance preparations include: Develops justification, gathers data collection instruments, acquires coordinates, creates cost analysis, and performs follow on reviews; Apply approved security practices relative to personnel and document control.

4.6.6 Review for completeness and include the information and briefings provided by DoD and/or the Military Services, as part of the request for information by the DACODAI prior to each Business Meeting.

4.6.7 Develop written reports and/or briefings in response to DACODAI's requests for information for each DACODAI Subcommittees. Develop and update requests for information status on a spreadsheet to brief at each Business meeting and Administrative Session.

4.7 Develop and submit edited minutes for each meeting. Minutes should include detailed descriptions of the request for information presented by briefers and should capture any discussions during question-and-answer sessions following each topic discussion. In addition, the meeting minutes should include information provided by DACODAI membership, Government staff, Military Services, or civilian presenters in support of each meeting. Submit draft minutes from the DACODAI meetings no later than 14 business days after each meeting.

4.7.1 Submit draft minutes from the DACODAI Business Meeting no later than 14 days after each Business Meeting.

4.7.2 Update and submit final meeting minutes within 7 days after Government feedback.

4.7.3 Final minutes will include all edits and comments from DACODAI. Submit Final Business Meeting minutes no later than 60 days after each Business Meeting.

4.8 Prepares 20 Committee members to conduct 5 nationwide focus groups, and business meetings.

4.8.1 Coordinate and schedule with the appropriate Military Service points of contact on any site visits and meetings for the DACODAI staff and committee members.

4.8.2 Serve as an installation visit facilitator, assisting the organization of focus groups.

4.9 Provide records and information management related activities.

4.9.1 Communicate DACODAI program data and criteria to constituents and committee staff/members.

4.9.2 Prepare special and recurring administrative reports of highly sensitive and controversial nature.

4.9.3 Collects, reviews, and consolidates, and analyzes data in support of DACODAI programs and mission requirements.

4.10 Provide research and analysis activities using a set of tools, methods, and/or procedures approved by the Government.

4.10.1 Provide independent, expert analytics advice on study/research topics associated with the scope of the DACODAI's charter, as directed by the Government. This includes the development, design, conduct, analysis, and reporting of content relevant to the completion of the DACODAI's mission.

4.10.2 Collect and publish information/news articles on relevant reviews, analysis, distillation, and application of all related research in the scientific literature applicable to racial/ethnic diversity, inclusion, and equal opportunity in the U.S. Armed Forces, as well as research supporting and applications of technical packages, studies, and peer-reviewed evaluations of prevention and response interventions. Provide a monthly report to be shared with DACODAI committee members and other agencies. It may also require contractor review of materials provided by DACODAI members for analysis and feedback.

4.10.3 Develop research-related products, such as literature reviews, and annotate reports with references to applicable research studies and other sources. Advise if the identified approach approved by the Government is likely to address the stated goals of the effort or provide alternative courses of action.

4.10.4 Conduct primary research in form of one-on-one interviews or small group discussions on topics aligned with the efforts of the Committee or its subcommittees. Prepare summary reports of findings and include recommendations, where appropriate, based on findings.

4.10.5 Design a program of instruction/training on the focus group facilitation process for DACODAI. A total of 2-5 research study topics will include the purpose of focus groups, strengths, and limitations in conducting research utilizing focus groups, facilitation and moderating procedures and techniques.

4.10.5.1 The program of instruction will include focus group training IAW the National Research Act of 1974, The Belmont Report, and DoD Instruction 3216.2 Protection of Human Subjects and Adherence to Ethical Standards in DoD-Supported Research.

4.10.5.2 Tailor the instruction to DACODAI issues and include practical exercises that will prepare members to properly facilitate focus groups.

4.10.5.3 Provide briefing slides, instruction handbook, and reference material. This instruction/training will take place during the scheduled Business Meeting.

4.10.6 Develop and submit draft focus group protocols on 2-5 research topics with a set standard of questions (protocols) for focus group interviews that are in compliance with: 45 CFR 46, Sub Part A, Protection of Human Subjects in Research;

<https://www.ecfr.gov/current/title-45/subtitle-A/subchapter-A/part-46> . Protocols shall consist of questions based on the Committee's approved study topics.

4.10.7 Develop a focus group protocol mini-survey sheet that captures demographics of the participant, less Privacy Act information. This mini-survey sheet shall also ask supplemental questions about the Committee's approved study topics that are best answered in a paper survey versus the protocol focus group environment.

4.11 Complete an Institutional Review Board (IRB) Review. Provide assessment(s) and recommendation(s).

4.11.1 Consolidate and edit notes from members and staff into the appropriate format, highlighting due-outs identified in the meetings. Reviews and completes the Institutional Review Board (IRB) focus group protocols to ensure (and determine) the protocols are IAW guidelines that relate to human subject research through an annual written letter to the DACODAI staff stating the protocols are within compliance or exempt.

4.11.2 Provide the IRB's protocol approval letter.

4.11.3 Focus group protocols shall be approved by the Contractor's IRB. The IRB shall be in accordance with:

The National Research Act of 1974; <https://ahrp.org/1974-national-research-act/>

The Belmont Report: <https://www.hhs.gov/ohrp/regulations-and-policy/belmont-report/index.html>

32 CFR 219; <https://www.govinfo.gov/app/details/CFR-2013-title32-vol2/CFR-2013-title32-vol2-part219>

DoD Instruction 3216.2 Protection of Human Subjects and Adherence to Ethical Standards in DoD-Supported Research; <https://www.ncbi.nlm.nih.gov/books/NBK236819/>

4.12 Schedule and coordinate on-site field-testing of protocols, as needed, at a location in the National Capital Region. The testing will include four to six focus group sessions at the selected location.

4.12.1 Attend the field-testing focus group sessions and take detailed notes.

4.12.2 After the field-testing focus group sessions, participate in an oral critique of the facilitation and recommend changes as needed. Ensure that any changes made to the field-tested protocol are reviewed by the IRB. Approval and updated changes to the protocols and/or mini-survey sheet shall be submitted for acceptance within one week after completion of field-testing.

4.12.3 Update and submit final focus group protocols and focus group mini-survey sheets.

4.12.4 Attend all focus group sessions at 5 installations located within the contiguous United States (CONUS) and attend virtually at locations outside the contiguous United States (OCONUS). Take detailed notes in six focus groups per installation to capture statements made by individual attendees (total 12) of the focus groups. Participate in discussion with Committee

members after each focus group to review notes to ensure all information was gathered and accurate.

4.12.4.1 Submit documents with all detailed notes of responses gathered from focus groups attendees. Responses must be broken down by each individual attendee. Documents must be submitted in commonly available software, e.g. Microsoft Word or Adobe Acrobat.

4.12.5 Perform analysis of the focus group content and mini-survey data gathered from sixty sessions. Develop briefing slides from the analyzed content. Product provided should be of high standard with minimum errors.

4.12.5.1 Provide draft briefing slides, from the analyzed focus group content, in graphs, charts, and or bullets that effectively capture the interim findings from the qualitative research. Slides should include mini-survey results, detailed findings from focus groups by gender, pay grade, and themes with supporting verbatim quotes. Draft slides to be reviewed by DACODAI staff prior to scheduled Business Meeting.

4.12.5.2 Provide final slides two days prior to the scheduled Business Meeting and brief slides at the Business Meeting. Be prepared to discuss and answer questions about the results.

4.12.6 Develop a fully edited written draft focus group report. This report shall include the analysis of the installation focus group sessions and mini surveys. Focus group findings should include a description of methods; mini-survey results; detailed findings from focus groups by gender, pay grade, and themes; charts and graphs, as applicable; and supporting quotes. Analyze DACODAI focus group results/conclusions from previous focus group reports to identify any trends. Product provided should be of high standard with minimum errors.

4.12.6.1 Develop final focus group report. This report will include all edits and comments from the DACODAI Staff and members. Product provided should be of high standard with minimum errors.

4.13 Consolidate Committee's recommendations, findings, reasoning, and data and format a first draft of the DACODAI's reporting requirement per year, to include an executive summary, introduction, additional appendices, as well as charts, graphs, figures, tables, photos, etc. Product provided should be of high standard with minimum errors.

4.13.1 Develop a second draft reporting requirement that captures all edits and comments from the first draft provided by DACODAI.

4.13.2 Develop a final reporting requirement that captures all edits and comments provided by DACODAI for formal coordination to SecDef. Final reporting requirement, to include a separate executive summary, should be formatted for use on the website and printing.

4.14 Perform data analysis to provide evidence-based, decision-making data analytics capabilities to enhance the efficiency of DACODAI's mission objectives/research through the extraction, analysis, and interpretation of large datasets.

4.14.1 Develop a data model and framework to ensure reliability and efficiency in responding to ad hoc reports from the Executive and Congressional offices.

4.14.2 Perform data collecting, cleaning, validating datasets, conducting thorough data analysis, developing, and implementing data models and statistical analyses, and creating data reports/visualizations for DACODAI staff and committee members.

4.14.3 Collaborate with DACODAI staff and committee members to understand data requirements and staying informed about industry trends.

4.14.4 Collect and analyze data related to workforce demographics, employee engagement surveys, and diversity initiatives. Provide a workforce demographics trend report annually.

4.14.5 Adhere to data management security and confidentiality of sensitive government data, implementing quality control measures, and optimizing data storage as prescribe by local government IT protocols.

4.14.6 Generate reports/briefings/issue papers, and executive summaries that provide regular statistical analysis, summarize trends and insights, and provide recommended solutions to enhancing DACODAI strategy. Data reports and data visualizations shall be provided monthly.

4.14.7 Develop and maintain dashboards and reports to track diversity metrics and progress by utilizing data visualization platforms (e.g., Tableau, Power BI, Excel).

4.14.8 Brief data analysis (quantitative data and qualitative information) findings to the DACODAI staff and committee members. Provide analysis via graphs, charts, and/or bullets that effectively capture the findings from the research. Be prepared to discuss and answer questions during the DACODAI subcommittee meetings, Administration meetings, Business Meetings. Product provided should be of high standard with minimum errors.

4.15 Provide a written monthly status report. This report shall present activities completed to date, number of hours worked, number of employees, problems and barriers to implementation that have occurred, activities planned for the next quarter, and the status of all draft and final deliverables. Provide no later than the third business day of each month.

4.16 Provide Transition of Contract Services –

Provide a plan for transition in and out services to ensure minimum disruption to vital Government business. This plan shall address how the Contractor will work with the incumbent and/or successor contractor and Government personnel to ensure that there will be no service degradation during and after the transition-in period will be for up to 30 days. The transition plan shall be provided no later than 30 days after contract award.

4.16.1 Participate in a Post-Award Conference.

This meeting shall provide an introduction between the Contractor personnel and Government personnel who will be involved with the contract. The meeting shall provide the opportunity to

discuss technical, management and security issues. The Post Award Conference will aid both the Government and Contractor in achieving a clear and mutual understanding of all requirements, and identify and resolve any potential issues. The Contractor shall be prepared to discuss any items requiring clarification and gather information as necessary to support each deliverable.

5.0 DELIVERABLES The Contractor shall provide deliverable(s) in a format mutually agreed upon by the Government and the Contractor. All deliverables will be reviewed for timeliness, accuracy and format. If a deliverable due date falls on a weekend or holiday, the Contractor shall submit the deliverable on the last work day prior to the due date. In fulfillment of this effort, the Contractor shall provide the following deliverables to the COR.

DELIVERABLE	PWS PARAGRAPH	DELIVERY DATE
Update and draft correspondences and documents pertinent to the Committee's charter and membership balance plan annually	4.3	Annually by last business day in January
Final draft of Annual Reporting Requirement to DACODAI completed No later than the end of the calendar year.	4.4	Annually by last business day in December
Update the GSA FACA database website to meet the annual reporting obligations	4.5	10 business prior to end of contract
Prepare Committee and Sub-Committee biannual meeting schedule, plan and coordination.	4.6.1	Annual schedule 4 months prior to first Committee meeting; and agenda 3 months prior to next meeting thereafter
Publish Meeting Agenda, Federal Register Notices, Prep Notes, Identification of Speakers, and Prepare Speaker Slides	4.6.4	Meeting agenda (twice per year) and meeting requirements 3 months prior to meeting. Updates committee website monthly.

DELIVERABLE	PWS PARAGRAPH	DELIVERY DATE
Request for Information (RFI) – Develop written report or briefing to DACODAI’s RFI, and to NMT 3 Subcommittees	4.6.7	Report or Brief 2 times per year, 1-2 days during Committee RFIs
First draft of BUSINESS MEETING Minutes	4.7.1	No later than 14 days after each BUSINESS MEETING
Update and submit final meeting minutes with Government feedback	4.7.2	within 7 days after Government feedback
Final BUSINESS MEETING Minutes	4.7.3	No later than 60 days after each BUSINESS MEETING
Plan and Schedule Military Services for 10 Site Visits	4.8.1	3 months prior to site visit
Tasks and due-outs from meetings of the main body of the DACODAI as well as subcommittees.	4.9.4.1	No later than 5 working days of each month
Status of completion of recommendations developed as part of Committee, as directed by the Government staff	4.9.4.2	No later than 5 working days of each month
Collect information/news articles on relevant reviews, analysis, distillation, and application of all related research in the scientific literature applicable to racial/ethnic diversity, inclusion,	4.10.2	No later than 10 working days of each month

DELIVERABLE	PWS PARAGRAPH	DELIVERY DATE
and equal opportunity in the U.S. Armed Forces		
Focus Group Training slides, instruction handbook, and reference material	4.10.5.1 4.10.5.2 4.10.5.3	10 days prior to BUSINESS MEETING
Draft Focus Group Protocols for total 5-7 Research Study Topics	4.10.6	Last business day in October
Draft Mini-Survey Sheet	4.10.7	Last business day in November
Complete an Institutional Review Board (IRB) Review. Provide assessment(s) and recommendation(s)	4.11 4.11.1	No later than seven (7) business days of IRB review
IRB Protocol Approval Letter	4.11.2	No later than 10 business days after the IRB review
Final Focus Group Protocols	4.11.3	No later than last business day in December
Final Mini-Survey Sheets	4.12.3	No later than last business day in December
Submit documents with all detailed notes of responses gathered from focus groups attendees.	4.12.4.1	No later than five (5) business days of focus group conclusion
Draft Briefing Slides of Analyzed Focus Group Content	4.12.5.1	No later than 10 days prior to scheduled BUSINESS MEETING
Final Briefing Slides of Analyzed Focus Group Content	4.12.5.2	No later than two (2) business days prior to scheduled BUSINESS MEETING
Develop a fully edited written draft focus group report	4.12.6	No later than five (5) business days

DELIVERABLE	PWS PARAGRAPH	DELIVERY DATE
Develop final focus group report. This report will include all edits and comments from the DACODAI Staff and members.	4.12.6.1	No later than three (3) business days
Consolidate Committee's recommendations, findings, reasoning, and data and format a first draft of the DACODAI's reporting requirement per year	4.13	Last business day in December
Develop a second draft reporting requirement that captures all edits and comments from the first draft provided by DACODAI	14.13.1	No later than five (5) business days
Develop a final reporting requirement that captures all edits and comments provided by DACODAI. Final reporting requirement, to include a separate executive summary, should be formatted for use on the website and printing.	14.13.2	No later than 10 business days
Provide training/briefings, in conjunction with the DACODAI	4.14	During scheduled BUSINESS MEETING

DELIVERABLE	PWS PARAGRAPH	DELIVERY DATE
Staff, to Committee members on the report writing and research process		
Workforce demographics trend report	4.14.4	No later than 30 days prior to end of contract
Data reports and data visualizations dashboard/reports	4.14.6	No later than four (4) business days after request
Develop dashboards and reports to track diversity metrics and progress by utilizing data visualization platforms (e.g., Tableau, Power BI, Excel).	4.14.7	Initial dashboard review conducted 15 days after contract award
Brief data analysis findings	4.14.8	During DACODAI subcommittee meetings, Administration meetings, BUSINESS MEETING, or as needed.
Monthly Status Report	4.15	No later than the 15 th of the following month
Transition Plan	4.16	No later than 30 days after contract award
Post Award Conference	4.10.1	No later than 7 days after contract award

5.1

The contractor shall report contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract via the System for Award Management (SAM) (<https://sam.gov>) in accordance with DFARS 252.204-7023.

6.0 CONTRACTOR TRAVEL

The Contractor shall be required to travel to ten (10) CONUS installations for installation visits, and within the NCR to support four (4) business meetings. Contractor costs for Government authorized travel are included in this contract. All travel shall be in accordance with FAR 31.205-46 and applicable travel regulations (Joint, Federal, or Standardized). Contractor payment claims shall include applicable documentation to support actual costs incurred (e.g., airfare and hotel/lodging receipts). Failure to provide appropriate documentation may result in loss of

reimbursement of travel expenses. No profit or fee will be allowed for travel. All travel shall be approved in advance by the COR or CO. Contractor payment claims shall include applicable documentation to support actual costs incurred (e.g. airfare and hotel/lodging receipts). No profit, fee, or G&A will be allowed, only actual costs will be reimbursed. Failure to provide appropriate documentation may result in a loss of reimbursement of travel expenses.

7.0 RECORDS MANAGEMENT

7.1 Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.

7.2 In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.

7.3 In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.

7.4 Defense Human Resources Activity and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of Defense Human Resources Activity or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Contracting Officer's Representative (COR). Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to the COR and the Defense Human Resources Activity Component Records Management Officer at dodhra.mc-alex.dhra-hq.mbx.records@mail.mil so DHRA may report promptly to NARA in accordance with 36 CFR 1230.

7.5 The Contractor shall immediately notify the COR upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know in accordance with all applicable privacy, security, and information protection policies. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not

remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the COR. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to DHRA control or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted to the COR. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (7.4).

7.6 The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and Defense Human Resources Activity guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.

7.7 The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with Defense Human Resources Activity policy.

7.8 The Contractor shall not create or maintain any records containing any non-public Defense Human Resources Activity information that are not specifically tied to or authorized by the contract.

7.9 The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.

7.10 The Defense Human Resources Activity owns the rights to all data and records produced as part of this contract. The contractor shall not include any contractor markings on deliverables created under the contract. All deliverables under the contract are the property of the U.S. Government for which Defense Human Resources Activity shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. The contractor shall not use or disclose any data or deliverables under this contract for any purposes other than performing the contract, unless expressly approved by the Government.

8.0 SECURITY

8.1 **Personnel Security.** Overarching security requirements are unclassified. Contractor and subcontractor personnel require unclassified access to DoD network(s), Information Technology (IT) systems, and Government Furnished Equipment (GFE). Contractor and subcontractor personnel must obtain, DoD credentials, (also known as the Common Access Card (CAC)) for physical and logical access to federally controlled facilities, and DoD Information Systems (IS) containing Personally Identifiable Information (PII) or Controlled Unclassified Information (CUI).

8.1.1 All Contractor personnel assigned to this contract are required to obtain and maintain the appropriate background investigation (BI) and adjudication or suitability determination in accordance with DODI 5200.02-DoD Personnel Security Program (PSP).

8.1.2 The contractor/subcontractor personnel on this contract will be designated performing in Noncritical-Sensitive positions for Unclassified access in accordance with Defense Counterintelligence and Security Agency (DCSA) and the Office of Personnel Management (OPM) investigative alignment, and DoDI 5200.02, DoDM 5200.02 and 32 C.F.R. Part 117.

8.1.3 No employee may perform under this contract or have access to information or systems under this contract until they have completed a Tier 3 (T3) or higher background investigation (BI) that meets the requirement or be in the process of a Personnel Security Investigation (PSI) with a minimum of interim eligibility.

8.2 Security Clearances. Not-Applicable

8.3 Staffing. The personnel supporting this contract who require a DHRA sponsored CAC, access to DoD network(s), DoD information systems with CUI/PII data, or DoD IT/Information Systems must be Citizens of the United States. The citizenship requirement also applies to personnel assigned or working on the contract at any remote sites.

8.4 Onboarding. Prior to requesting access to DHRA sponsored resources (e.g., DoD credential(s), Network(s), IT systems, Information Systems (IS) or facility), the contractor must provide an official request via DHRA's onboarding system(s)/encrypted email/DoD SAFE accompanied by a complete Defense Logistics Agency Headquarters (DLAH) Form 1728 - Request for HQC Contractor Badge and/or Information Technology (IT) Access. The DHRA Security and the Defense Logistics Agency (DLA) Personnel Security (PERSEC) will validate the contractor meet the requirement.

8.5 Listing of employees & Clearance Documentation. The Contractor shall maintain a current listing of employees. Within 10 calendar days of contract award, the Contractor shall provide the COR a list of all company employees assigned to this effort. The employee list should include the following information: Contract number, employee information (full legal names), DHRA center/office, location of performance, clearance level needed, IT access level needed (e.g., privilege, authorize or other). The list shall be validated by the company and DHRA Personnel Security (PERSEC). The Contractor shall provide the COR with an updated listing when any employee's status or information changes.

8.6 Access to Sensitive Information. To the extent that the work under this contract requires the Contractor to have access to DoD sensitive information the Contractor shall after receipt thereof, treat such information as confidential and safeguard such information from unauthorized use and disclosure. The Contractor shall not appropriate such information for its own use or disclose such information to third parties unless specifically authorized by the Government in writing.

8.6.1 The Contractor shall allow access only to those employees who need the sensitive information to perform services under this contract and who have acknowledge that sensitive information shall be used solely for the purpose of performing services under this contract. The Contractor shall prevent its employees from discussing, divulging, or disclosing any such information to any person or entity except those persons within the Contractor's organization directly performing the contract.

8.7 Information Technology (IT) Level Investigation Requirements. The contractor/subcontractor personnel supporting this contract will require Authorized (Moderate) access to DHRA IT & Information.

8.7.1 Contractor personnel, who perform work on sensitive networks, IT systems or applications, must possess and maintain the appropriate investigation and adjudication determination. The Contractor shall assure that individuals assigned to the contract undergo the respective BI and have obtained the proper eligibility, based on job function or tasks performed, before performing any work or accessing any systems or information under the contract.

8.7.2 IT-Level position category designation does not imply or convey authorization to access classified information.

8.7.3 The IT Level will determine the access level needed to perform work on the DoD IT Systems/Networks. The IT access level is designated based on the IT system/network requirements according to the DoD Cyber, Security Technical Implementation Guides (STIGs) <https://public.cyber.mil/stigs/>.

8.7.4 It is the responsibility of the contractor to ensure the employees meet the appropriate Tier investigation prior to requesting IT access.

8.7.5 **Authorize** – Moderate Risk: All personnel in positions in which the individual is responsible for the-direction, planning, design, operation, or maintenance of a computer system, and whose work is *technically reviewed* by a higher authority of the *Privilege* to ensure the integrity of the system. All personnel identified in one or more of these job functions must complete a Tier 3 (T3) or Tier 3 Reinvestigation (T3R), an equivalent or higher BI to meet the Noncritical-Sensitive role. Roles may include, but are not limited to:

- Access to and/or processing of proprietary data, information requiring protection under the Privacy Act of 1974.
- Those with the ability to aggregate and extract data en masses from an automated records repository containing PII.
- Other positions designated by the Agency head that involve a degree of access to a system that creates a significant potential for damage or personal gain less than that in *Privilege* positions.

8.8 Personal Identifiable Information (PII) and Tier Investigations. All personnel supporting this contract must protect PII data according to the Privacy Act of 1974. Personnel requiring

access to Information Technology (IT) or access to DoD Information Systems that contain military active duty, guard, or reservists' PII or information pertaining to Service members that are otherwise protected from disclosure where such access has the potential to cause serious damage to national security, must be vetted accordingly and protect the data. BI levels required for each job function or necessary access, include, but are not limited to, the following:

8.8.1 Tier 5/Tier 5R for Special-Sensitive/Critical-Sensitive – High Risk: All personnel with administrative capabilities in a system storing PII, personnel security investigations or adjudication determinations require a Tier-5 (T5) BI.

8.8.2 Tier 3/Tier 3R for Noncritical-Sensitive – Moderate Risk: All personnel with the ability to aggregate or extract military PII en masses from an automated records repository requires at a minimum, a favorably adjudicated Tier-3 (T3) BI or equivalent.

8.8.3 Tier 1 for Non-Sensitive – Low Risk: All Personnel whose access to military PII is limited to data entry or singular search capability require, a minimum, a favorably adjudicated Tier-1 (T1) BI.

8.8.4 The Contractor shall report immediately to the DHRA Privacy Office and secondly to the COR discovery of any Privacy breach.

8.9 Controlled Unclassified Information Requirements for DoD Contractors. The following procedures will be used to protect Controlled Unclassified Information (CUI) documents and materials:

8.9.1 HANDLING: Access to CUI material shall be limited to those employees needing the material to perform their duties. The CUI marking is assigned to documents and material created by a DoD User Agency. CUI is not a classification, but requires extra precautions to ensure it is properly safeguarded and disseminated and is not released to the public without government authorization.

8.9.2 MARKING: The Contractor shall mark unclassified documents containing CUI as follows: "CUI" at the top and bottom of each page, include the CUI warning box, and the CUI Designation Indicator Block as required in DoDI 5200.48.

8.9.2.1 Mark other records such as computer print outs, photographs, films, tapes, or slides in accordance with DoDI 5200.48 so the receiver or viewer knows that it contains CUI material.

8.9.2.2 Mark a message containing material in accordance with DoDI 5200.48. Unclassified messages containing CUI material must show the abbreviation (CUI) before the text begins.

8.9.2.3 Ensure documents transmitting CUI material call attention to any attachments containing CUI.

8.9.2.4 CUI material released to a contractor by a DoD user agency must have the following statement on the front page or cover:

THIS DOCUMENT CONTAINS CUI MATERIAL AND MUST BE REVIEWED BY A GOVERNMENT REPRESENTATIVE UNDER THE REQUIREMENTS OF DODI 5200.48, DODI 5230.09, and DODI 5230.29.

8.9.3 STORAGE: The Contractor shall, place CUI material in an out-of-sight location during normal work hours, if the work area is accessible to persons who do not have an authorized government purpose for access to the material. After normal duty hours, the Contractor shall store CUI material to prevent unauthorized access by filing it with other unclassified records in unlocked files or desks when internal building security is provided and the file is marked as CUI. When there is no internal security, locked buildings or rooms usually provide adequate after hours protection. For additional protection, store CUI material in locked containers such as file cabinets, desks, or bookcases.

8.9.4 TRANSMISSION: CUI documents and materials may be transmitted via first class mail, parcel post or, for bulky shipments, fourth class mail. Within the CONUS discussion of CUI material on the telephone is authorized if necessary for the performance of the contract and no alternative is available. Electronic transmission of CUI (voice, data, or facsimile) should be by approved secure communications systems whenever practical. If there is a fax transmission, the sender must ensure the intended receiver is available to receive it or a cover sheet will be used to allow carrying it to the final recipient to avoid unauthorized disclosure of the CUI.

8.9.5 RELEASE: CUI material shall not be released outside of the contractor's facility except to the representative of DoD or DHRA.

8.9.6 DESTRUCTION: When the CUI material no longer meets the threshold for safeguarding and dissemination, the Contractor shall immediately decontrol it, process it through the records management process, and destroyed by the approved methods identified in DoDI 5200.48 to preclude its disclosure to unauthorized individuals by rendering it unreadable, indecipherable, and irrecoverable.

8.10 Position of Trust (POT) Requirements. DCSA and OPM offers the Tier background investigations, Tier 1 (T1) – Tier 5 (T5) for Position of Trust determination. The T5 being the most stringent investigation and T1 being the least stringent.

8.10.1 The Government is responsible for the cost of POT or sponsor a DoD-determined equivalent background check for unclassified access.

8.10.2 The Position of Trust BI process requires the DoD Government Security Office to review each request and establish the BI sponsorship. Submit a request and list of personnel for security investigation to the DHRA Security Office point of contact(s) to be provided by the COR- NLT five (5) business days after contract award.

8.10.3 Per DCSA a T3 or T3 Reinvestigation (T3R) meets the requirement for a Noncritical-Sensitive position. A new application for a DoD T3/T3R BI for Position of Trust determination requires FBI fingerprints check, proof of US Citizenship and a Personnel Security Questionnaire

(PSQ) on the Standard Form (SF) 86 using the National Background Investigation Services – electronic Application (NBIS/eApp). The Contractor employees shall provide all requested information pursuant to the Privacy Act of 1974 when requested by the Government. The Government Security Office will provide instructions according to the individual case and Tier BI to access the eApp system. For information visit NBIS at <https://www.dcsa.mil/is/nbis/>

8.10.4 Reciprocity. The DHRA and DLA PERSEC will use reciprocity to the extent possible and if necessary will request re-adjudication by the DCSA Adjudication and Vetting Services (AVS) to support the DoD standards per Executive Order E.O 13467.

8.10.4.1 A BI equivalency will be according to the investigative alignments offered by the OPM and the DCSA here, https://www.dcsa.mil/Portals/91/Documents/pv/GovHRSec/Position_Designation_Investigation_Type_Chart_Sept_2017.pdf

8.10.4.2 Reciprocity consideration includes verifying break in service longer than 24 months as a US Military, US Civilian or US Contractor from the last favorable investigation.

8.10.5 A new Position of Trust applicant under this contract must obtain at a minimum interim eligibility from DLA Security prior to the assignment and performance of their duties in support of the Government in this contract.

8.10.6 DHRA's interim Position of Trust eligibility is sponsored by DHRA Security and approved by DLA PERSEC.

8.10.7 Eligible interim Position of Trust personnel expectations include, but are not limited to:

8.10.7.1 Comply with all personnel security requirements as specified by DHRA and DLA PERSEC;

8.10.7.2 Attain and maintain favorable FBI fingerprint results;

8.10.7.3 Comply with all investigative and adjudicative requirements, which includes responsiveness to time-sensitive requests (e.g., interview(s), additional information or clarification) from the DLA PERSEC, DCSA investigator or the adjudicative agency;

8.10.7.4 Attain and maintain favorable eligibility to the designated BI.

8.11 Controlled/Restricted Areas. The Contractor shall comply with local procedures for entry to DoD/DHRA controlled/restricted areas where Contractor personnel will work.

8.12 Physical Security. The Contractor shall safeguard all Government property and controlled forms provided for Contractor use and adhere to the Government property requirements contained in this contract. At the end of each work day, all Government facilities, equipment and materials shall be secured.

8.13 Pass and Identification Items. The Contractor shall ensure the pass and identification items required for contract performance are obtained for employees and non-government owned vehicles.

8.14 DoD Credentials/Common Access Card (CAC). Contractor personnel must obtain a DoD credential or CAC if they are assigned to perform work under this contract requiring access to DoD network(s), CUI/PII data, IT/Information Systems, DoD Facilities or non-DoD federally controlled facilities on behalf of the DoD on a recurring basis per DODM 1000.13, DoD Identification (ID) Cards: ID Card Life-Cycle.

8.14.1 Comply with HSPD-12 Personal Identity Verification (PIV) issuance requirements. Be responsible for obtaining a CAC or PIV and be in ready status prior to requesting access to DoD resources such as DoD Facilities, DoD IT/Information Systems (IS).

8.14.2 CAC Applicant supporting this contract will need to meet the following requirements:

8.14.2.1 Execute, obtain/maintain a favorable FBI National Criminal History Check (fingerprint check);

8.14.2.2 Have an open Tier 3 or equivalent BI to meet Noncritical-Sensitive role;

8.14.2.3 Be ready to provide two forms of identification (I-9 document);

8.14.2.4 Provide proof of U.S Citizenship.

8.15 Retrieving Identification Media. The Contractor shall retrieve all identification media, including vehicle passes from employees, including those who depart for any reason before the contract expires; e.g. terminated for cause, retirement, etc.

8.16 Key Control/Access Badge Control. The Contractor shall establish and implement methods of making sure all keys/badges issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. The Contractor shall not duplicate any keys issued by the Government.

8.16.1 Prohibited Use. The Contractor shall prohibit the use of keys, issued by the Government, by any persons other than the Contractor's employees and the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in performance of contract work requirements in those areas.

8.17 Conduct while on Government Installation. The Contractor shall not assign work or direct its employees to access government information, systems, or installations unless the employees have and maintain the required background investigation, clearances, and authorizations.

8.18 Weapons, Firearms, and Ammunition. Contractor employees are prohibited from possessing weapons, firearms, or ammunition, on themselves or within their contractor-owned

vehicle or privately-owned vehicle while on all government installations.

8.19 Reporting Requirements. Contractor personnel shall report to an appropriate authority any information or circumstance of which they are aware that may pose a threat to the security of government or contractor personnel, resources, or information.

8.20 Government Furnished Equipment (GFE). The Contractor shall establish and implement procedures to ensure all GFE to include laptops and other data processing devices, issued to the Contractor by the Government are not lost or misplaced, are not used by unauthorized persons, and are not subject to unauthorized external devices. The Contractor shall immediately report to the COR any lost GFE within two (2) hours of discovery of occurrence. In the event that GFE is lost, the Contractor may be required, upon written direction of the Contracting Officer, to replace the equipment at no additional cost to the Government. The Government may replace the equipment and deduct the cost from the monthly payment due the Contractor.

8.21 Lock Combinations. Not Applicable

8.22 Offboarding. Upon completion of the contract, an employee's relocation or termination of an employee, or upon request from the COR in accordance with DHRA centers or offices security policies coordinate the employees removal from work under this contract with the COR.

8.22.1 If at any time, any Contractor personnel supporting this contract are unable to obtain/maintain an adjudicated T3 BI, the Contractor shall immediately notify the COR and coordinate removal of such a person from work under this contract and replace the individual with appropriate level background investigation knowledge, skill and ability (KSA) required to perform services.

8.22.2 As the contractor replaces employees, the contractor shall submit the outgoing employee's installation access and return all CACs/badge(s)/identification card(s) immediately to the COR, who will turn it in to the local Installation Access Control Office or Government Security Office.

8.22.3 Submit an Off-boarding notification to the COR and the DHRA PERSEC as soon as the contractor knows an employee is leaving the contract.

8.22.4 When personnel change, provide updated personnel security list to the COR within three business days of a change.

9.0 Cybersecurity

9.1 Cyber Incident Reporting. In addition to DFARS 252.204-7012, the Contractor shall notify the DMDC Incident Response (IR) team by emailing an initial cyber incident report to dodhra.dodc-mb.dmdc.list.ir-team@mail.mil, the Contracting Officer, and the COR within one hour of discovering any cyber incident. The Contractor shall follow up with a supplemental report every 24 hours until the incident is closed.

9.2 Information System Security. The Contractor shall implement IS security protections that are appropriate for the confidentiality, integrity, and availability needs of the contract. The protections must include the administrative, technical, and physical safeguards necessary to protect all nonpublic Government data.

9.3 Risk Management Framework

9.3.1 All DoD IS or DOD information in electronic format must be authorized to operate by the Authorizing Official (AO) according to Department of Defense (DOD) Instruction (DoDI) 8510.01, Risk Management Framework (RMF) for DoD Systems. Contractor must directly support RMF authorization activities that is consistent with the principles established in the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-37.

9.3.2 Contractors supporting authorized systems must maintain their authority to operate and conduct RMF activities pertaining to all life cycle phases (Prepare, Categorize, Select, Implement, Assess, Authorize, Monitor) to maintain compliance with RMF.

9.3.3 The Contractor shall support requirements to maintain current and achieve new Authorities to Operate (ATOs), Interim Authorization to Test (IATTs), Authorities to Connect (ATCs) for all IT systems using the DoD RMF.

9.3.4 The Contractor shall implement security controls in accordance with NIST SP 800-53 and use assessment procedures from NIST SP 800-53A with additional DoD-specific assignment values, overlays, implementation guidance, and assessment procedures as required. System categorization is performed by DMDC Cybersecurity Division (CSD) and adheres to the Committee on National Security Systems Instruction (CNSSI) 1253 requirements.

9.3.5 The Contractor shall adhere to Executive Order 13800, which mandates using the NIST publications as the authoritative guidelines for the DoD RMF. The Contractor must employ its experience and knowledge in NIST 800 series publications to align tasks and activities directly supporting the authorization of systems.

9.3.6 The Contractor shall ensure all systems meet the requirements of the Federal Information Security Modernization Act (FISMA), 44 U.S.C. § 3551 et seq and 40 U.S.C. § 11331.

9.3.7 The Contractor shall develop and maintain a plan of action and milestones (POA&M) to address known vulnerabilities in the system, subsystems, and system components in accordance with DoDI 8531.01. The Contractor shall submit the POA&Ms to the Government and receive the Government's approval of the POA&Ms before implanting them.

9.3.8 The Contractor shall adhere to the applicable Security Technical Implementation Guide (STIG) for the design, development, testing, deployment and maintenance of the IS required for the contract.

9.3.9 The Contractor shall support the RMF Certification and Accreditation process. Final approval for all Information Assurance (IA) tasks belongs to the Information System Security

Manager (ISSM), Cybersecurity Division. The contractor shall obtain final approval from the Government ISSM. The Contractor must coordinate all IA-related design decisions, including cryptography, authentication, access control, data transfer and storage, and Need-to-Know, with the designated Government representative and receive Government approval before implementation.

9.3.10 The contractor shall coordinate directly with the Application Compliance Branch within the DMDC / Service Delivery Directorate / Service and Application Support Division for all cyber security and RMF related activities encompassed in this contract.

9.4 System-Level Information System Security Officer (S-ISSO).

9.4.1 The Contractor shall perform S-ISSO responsibilities at the system/application level. The S-ISSO shall manage the IS security and the day-to-day security operations of the system for the entire IS lifecycle. The S-ISSO shall advise the system owner on security requirements and system security design and shall ensure that security controls are in place.

9.4.2 The Contractor shall prepare the RMF Package by using the automated validation capabilities of the Enterprise Mission Assurance Support Service (eMASS). The Contractor shall develop or update the Security Package for each system/application prior to major system or application releases.

9.4.3 The S-ISSO shall develop, document, and maintain the system authorization processes within the DHRA instance of eMASS, including, but not limited to: System Security Plan (SSP), Implementation Plan, control compliance (self- assessment test results, evidence, STIGs, vulnerability scans, and compliance scans), POA&M, and all requisite DMDC Forms.

9.4.3.1 The security plan shall detail the system description to include system locations, boundaries, FISMA information, mission criticality and CUI categorization, user categories, hardware/software, security architecture, information flows/paths, network connection rules, interconnected systems, communication ports, protocols and services, encryption techniques, and crypto key management information.

9.4.3.2 The Contractor shall assemble and submit the security authorization package containing the results of the Security Assessment Report (SAR), the POA&M, the System Security Plan, and other documents that provide the authorizing official with essential information needed to make a risk-based decision on whether to authorize operation.

9.4.4 S-ISSO shall provide Program/Product Owner support for assessments, validations, and audits with respect to eMASS access and clarifications.

9.4.5 S-ISSO may obtain information on DoD and DMDC policy and processes for completion of the required Risk Management Framework artifacts from the DMDC Cybersecurity Division, Service Delivery Directorate, or the Program Management Office.

9.4.6 S-ISSO shall support Cyber Security Service Provider (CSSP) tasks and activities supporting the execution and compliance of DoDI 8530.01.

9.5 Cloud Services

9.5.1 In addition to the requirements in DFARS 252.239-7009 and 7010, any commercial cloud computing services used for this requirement shall comply with the DoD Cloud Computing Security Requirements Guide (Cloud SRG) and DoD Cloud Computing Supplemental Guidance and Information as published by the Defense Information Systems Agency (DISA).

9.5.2 The Contractor shall use cloud computing services have been issued an Authority to Operate (ATO) or Provisional-ATO (P-ATO) by the DISA at the impact level appropriate to the requirement (DFARS 239.7602-1). The Contractor shall follow DHRA's RMF processes outlined in this PWS. All cloud computing services must have an Authority to Operate issued by the DHRA AO, as the mission owner. Evidence of DISA authorization must be retrievable from DISA cloud authorization repository.

9.5.3 For information systems that will store, process, or transmit DoD data at the public level (not CUI data), and have no or low levels of PII, the proposed cloud software as a service solution must be certified at least as high as the FedRAMP Moderate level or DISA's Impact Level 2 (IL-2). The PII levels must remain at the no/low PII levels (as determined by a privacy impact assessment (PIA)) and the DoD data levels remain at the public level for the entire period of performance of the contract. A FedRAMP or IL-2 cloud service provider will accommodate data requirements up to low confidentiality and moderate integrity as defined by the Committee on National Security Systems Instruction 1253.

9.5.4 For information systems that will store, process, or transmit DoD data at the unclassified or CUI level, and/or have moderate or higher levels of PII, the proposed cloud software as a service solution must be certified at least at the DISA Impact Level 4 or 5 (IL-4 or IL-5). There is no FedRAMP level of certification that will support DoD CUI data and/or moderate or higher levels of PII. If an IL-4 or IL-5 Software as a Service product is unavailable, the Contractor shall propose an IL-4 or IL-5 Platform as a Service or Infrastructure as a Service solution. A Contractor owned or operated, private data center is not an acceptable solution and is not permitted.

9.6 Monitoring

9.6.1 Information Security Continuous Monitoring (ISCM). ISCM is defined as maintaining ongoing awareness of information security, vulnerabilities, and threats to support organizational risk management decisions. ISCM is a critical part of the risk management process. It ensures that IS and Platform Information Technology (PIT) operations remain within an acceptable level of risk despite any changes that occur. The Contractor shall implement continuous monitoring activities in accordance with Office of Management and Budget Memorandum M-14-03; NIST SP 800-137; NIST SP 800-137A; and DoDIs 8530.01 and 8531.01. Continuous Monitoring (ConMon) is under the responsibility of DMDC's Cybersecurity Division (CSD). The DMDC ConMon plan governs the Contractor's ConMon performance and related activities and takes precedence over all related policies and procedures.

9.7 Incident Reporting

9.7.1 Cyber Incident Reporting. In addition to DFARS 252.204-7012, within one (1) hour of discovery of any cyber incident the Contractor shall notify the DMDC Incident Response (IR) team by emailing an Initial cyber incident report to the following organizational box: dodhra.dodc-mb.dmdc.list.ir-team@mail.mil, with subsequent reporting every 24 hours until the incident is closed. The Contractor shall also notify the COR and CO at the time the incident is reported to DMDC/IR. Contractors will respond to IR Team requests within the time specified to avoid loss of network access.

9.8 Application Security

9.8.1 The Contractor shall apply DoD Application Security and Development (ASD) STIG configuration requirements for software development and architecture. Contractor developers shall employ secure coding fundamentals and best practices such as the Open Worldwide Application Security Project (OWASP). The Contractor shall adhere to DMDC and DHRA coding standards as described in “Software Delivery Management Coding Standard, version 1.4, 14 March 2022”; available upon request at the URL below:

[https://dod365.sharepoint-mil.us/:w:/r/sites/OSDDHRA-DMDC/bizproc/Business Process Review/_layouts/15/Doc.aspx?sourcedoc=%7BB6377A17-5365-4AA7-84E8-2578EFF2B827%7D&file=DMDC%20Coding%20Standards_v1-4.docx](https://dod365.sharepoint-mil.us/:w:/r/sites/OSDDHRA-DMDC/bizproc/Business%20Process%20Review/_layouts/15/Doc.aspx?sourcedoc=%7BB6377A17-5365-4AA7-84E8-2578EFF2B827%7D&file=DMDC%20Coding%20Standards_v1-4.docx).

9.8.2 The Contractor shall remediate or mitigate software vulnerabilities according to DHRA and DMDC Cyber Hardening Policies. The Contractor shall create and manage POA&Ms and must meet all timelines and execution standards.

9.8.3 The Contractor shall implement Joint Force Headquarters-Department of Defense Information Network (JFHQ- DODIN) and United States Cyber Command (USCYBERCOM) cyberspace tasking orders (CTOs) within the directed timeframe. CTOs include, but are not limited to, application whitelisting, secure protocols, Vulnerability Disclosure Program.

9.8.4 The Contractor shall complete appropriate code review, code scans, POA&Ms, and approvals for internally developed applications and websites before putting them into the production environment.

9.8.5 The Contractor shall perform application code scans in accordance with DHRA/DMDC guidance and policies (available upon request), which require, among other things, using tools such as Fortify and Sonatype. For instance, according to current policy, the Contractor shall conduct code scans before releasing code to production, when rule packs or STIGs change, or on an as-needed basis to identify new findings. DMDC updates cyber tool rule packs monthly and quarterly. The contractor shall provide application source code to support code scanning. The Government may change policies based on, among other things, operations, developments, or changing priorities.

9.8.6 All public websites are subject to DoD PortSwinger BurpSuite scans. The contractor shall remediate findings that result from these external scans.

9.8.7 The Contractor shall utilize a government furnished tool to centrally manage applications risks, which includes viewing/managing vulnerabilities, POA&Ms creation/submission, uploading of source code, and viewing recommended remediation. The government currently utilizes Fortify Software Security Center to perform this function.

9.8.8 The Contractor shall create and maintain entries within established eMASS instances for applications with required artifacts and include evidence of compliance associated with the relevant Common Control Identifier (CCI) security controls.

9.9 Cyberspace Workforce Management Requirements.

9.9.1. The cybersecurity workforce requirements establish the baseline technical and management skills necessary for personnel performing cybersecurity functions across the DHRA enterprise. The Cybersecurity Workforce includes, but is not limited to, all individuals performing any of the cybersecurity functions described in the DoD 8140 series of instructions and manuals, which include any new or updated policies, guidance, and regulations as they are released. The Contractor shall screen personnel performing cybersecurity functions and shall identify and manage its cybersecurity workforce accordingly.

9.9.2 Audit and Compliance Reviews. The Contractor shall be prepared to provide and shall provide all data and information requested during any cybersecurity workforce compliance review or audit within three business days of receiving the request. Audits or reviews may occur at intermittent intervals and at any time the Government deems appropriate. Compliance documentation includes, but is not limited to, educational qualifications, professional or positional certifications, and training records.

9.9.3. The DODI 8140 qualification matrix is accessible on the DoD Cyber Exchange at <https://public.cyber.mil/wid/cwmp/dod-cyber-workforce-qualifications-matrices-management/>

9.10 Cybersecurity Deliverables Table

Deliverable	PWS Ref#	Frequency	Stipulations
RMF Implementation Plan Report. Summary report to show implementation status versus current control compliance status.	9.6.1 9.4.3	Monthly.	Implementation Plan and control compliance must match within eMASS.
Evidence of RMF System Security	9.4.2, 9.4.3, 9.4.3.2	5 months prior to ATO expiration date or the ATO need-by date, as applicable.	All SSP work is to be performed within eMASS.

Plan (SSP) completion.			
Plan of Action and Milestone (POA&M)	9.3.7	Add or update POA&Ms 10 business days after: new vulnerability discovered, vulnerability closed, change of remediation timelines, and/or any change affecting POA&M.	POA&Ms must include detailed milestones showing steps to remediate and any mitigating factors to reduce risk.
Plan of Action and Milestone (POA&M)	9.3.7, 9.4.3	Monthly report of POA&M status.	Report must indicate new and updated POA&Ms from previous report.
Security Technical Implementation Guide (STIGs) Checklists	9.3.8	Current STIG findings within 30 days of ATO package and Change Request submissions.	STIG checklist uploaded into eMASS and mapped to appropriate controls.
Assessment and Authorization (A&A) Submission Entrance Criteria Checklist (CSD Form 12)	9.3.9, 9.3.10 9.4.3	90 days prior to ATO expiration date or prior to ATO need-by date, as applicable.	There shall be no more than 1 Return for Rework (RFR). Must be re-submitted within 5 business days of RFR.
DoDI 8140.03 Cybersecurity Workforce compliance	9.9.1 9.9.2	As required as part of an audit or when requested by the Government.	Compliance report must be provided within 3 business days of notification of audit or requested by the Government.

10.0 GOVERNMENT FURNISHED PROPERTY/EQUIPMENT/INFORMATION (GFP/GFE/GFI)

The Government will provide the Contractor government furnished equipment (GFE), including laptops, external cameras, if need, CAC card readers, and portable printers that will be issued to the Contractor. Additionally, DACODAI will provide the contractor with data and information on racial/ethnic, diversity, inclusion, and equal opportunity.

11.0 PLACE OF PERFORMANCE

The Contractor will work from their facilities, as well as designated BUSINESS MEETING locations and installation visit sites.

12.0 QUALITY CONTROL

The contractor shall implement and maintain a Quality Control Plan (QCP) to ensure work performed conforms to the scope of work and meets the requirements under this PWS. The QCP shall, at a minimum provide a method for performing inspections; identifying, correcting and preventing problems/defective service; addressing customer complaints, and improving the quality of services over the life of the contract.

13.0 QUALITY ASSURANCE

13.1. The Government reserves the right to perform inspections and surveillance to evaluate the Contractor's compliance to the contract terms and performance of the requirements in the PWS.

13.2. Contract Discrepancy Report (CDR). In the event of unsatisfactory contractor performance, the COR or CO will issue a CDR that will explain the circumstances and findings concerning the incomplete or unsatisfactory service. The contractor shall acknowledge receipt of the CDR and respond in writing as to how he/she shall correct the unacceptable performance and avoid a recurrence. The Government will review the contractor's corrective action response to determine acceptability and will use any completed CDR as part of an overall evaluation of Contractor performance when determining present or future contractual actions.

14.0 ORGANIZATIONAL CONFLICTS OF INTEREST

The Contractor acknowledges that it is familiar with FAR Subpart 9.5, Organizational and Consultant Conflicts of Interest, and agrees to avoid, neutralize or mitigate such conflicts of interest in accordance with the principles set forth in the FAR. If the performance requires the Contractor (to include subcontractors) to supply technical support related to systems or projects with which the Contractor is already directly concerned, either by prime or subcontract, the Contractor shall immediately inform the Contracting Officer. The PWS may be withdrawn if a conflict is found. The Contractor shall not undertake performance of any PWS requirements which requires it to supply technical support regarding such systems until the notice is given, and written consent to proceed is issued by the Contracting Officer.

15.0 APPLICABLE DOCUMENTS [List applicable documents in the chart with web links to the location where they can be accessed.](#)

Document	Web link
National Research Act of 1974	https://history.nih.gov/research/downloads/PL93-348.pdf
The Belmont Report	http://www.hhs.gov/ohrp/regulations-and-policy/belmont-report/#
DoD Instruction 3216.02, Protection of Human Subjects and Adherence to Ethical Standards in DoD-Supported Research	http://www.dtic.mil/whs/directives/corres/pdf/321602p.pdf
45 CFR 46, Sub Part A, Protection of Human Subjects in Research	http://www.hhs.gov/ohrp/regulations-and-policy/regulations/45-cfr-46/#subparta
32 CFR 219	https://www.gpo.gov/fdsys/granule/CFR-2013-title32-vol2/CFR-2013-title32-vol2-part219

16.0 PERFORMANCE REQUIREMENT SUMMARY (PRS)

16.1 Purpose. The PRS lists performance objectives for the required services the Government will surveil. The absence of any contract requirement from the PRS shall not detract from its enforceability nor limit the rights or remedies of the Government under any other provision of the contract including the clauses entitled “Inspection of Services” or “Inspection” or “Default” in the contract.

16.2 Components. The PRS states the performance objective (required service), and threshold (performance standard, accept and reject points (if applicable)) in either a qualitative or quantitative fashion for each critical success factor.

Performance Objective	PWS paragraph	Performance Standard/Acceptable Quality Level
Submit deliverables (not including those listed below) on time	5.0	Performance is acceptable when no more than one instance per month where a deliverable was submitted late
Provide draft and final Annual Reporting Requirement on time	4.4	Performance is acceptable when there are zero instances when the draft and final reporting requirement was not provided on time.
Provide final briefing slides and give brief of analyzed focus group content on time	4.12.5	Performance is acceptable when there are zero instances when the briefing slides were not provided, and analysis not briefed at business meeting.
Provide draft and final Focus Group Report on time	4.12.6 4.12.6.1	Performance is acceptable when there are zero instances when the draft and final report was not provided on time.
Provide Committee’s recommendation draft and final report on time to SecDef	4.13 4.13.1 14.13.2	Performance is acceptable when there are zero instances when the draft and final report was not provided on time.
Brief data analysis (quantitative data and qualitative information) findings to the DACODAI staff and committee members. Provide analysis via graphs, charts, and/or bullets that effectively	4.14.8	Performance is acceptable when there are zero instances when the briefing slides were not provided, and analysis not briefed at subcommittee, Administration, and business meeting.

capture the findings from the research.		
Provide monthly status report	4.16.1	Performance is acceptable when no more than one instance when a monthly report was not provided on time during the annual period of performance.

17.0 Mandatory Training Requirements:

Contractor employees performing under this contract shall complete the following mandatory trainings within 30 calendar days of reporting for duty and annually thereafter when applicable.

1. OPSEC Awareness for Military Members, DoD Employees and Contractors IAW DoDM 5205.02, “DoD Operations Security (OPSEC) Program Manual”, dated October 29, 2020. The training is currently available at:
<https://securityawareness.usalearning.gov/opsec/index.htm>
2. Unauthorized Disclosure of Classified Information and Controlled Unclassified Information IAW DoDI 5200.48, “Controlled Unclassified Information (CUI)”, dated March 6, 2020. The training is currently available at:
<https://securityawareness.usalearning.gov/disclosure/index.html>
3. DoD Mandatory Controlled Unclassified Information (CUI) Training, Executive Order 13556, Controlled Unclassified Information and DoDI 5200.48, “Controlled Unclassified Information (CUI)”, dated March 6, 2020. The training is currently available at:
<https://securityawareness.usalearning.gov/cui/index.html>
4. Insider Threat Awareness IAW DoDD 5205.16, “The DoD Insider Threat Program”, dated August 28, 2017. The Training is currently available at:
<https://securityawareness.usalearning.gov/itawareness/index.htm>
5. Privacy Act and Personally Identifiable Information IAW DoDI 5400.11, “DoD Privacy and Civil Liberties Programs”, dated January 29, 2019. The training is currently available at: <https://securityawareness.usalearning.gov/piiv2/index.htm> or <https://public.cyber.mil/cyber-training/training-catalog/>
6. IT Security Awareness IAW title 5, Code of Federal Regulations, section 930.301. The training is currently available at:
<https://securityawareness.usalearning.gov/cybersecurity/index.htm> or <https://public.cyber.mil/cyber-training/training-catalog/>
7. Counterintelligence Awareness and Reporting Training IAW DoD Directive 5240.06, “Counterintelligence Awareness and Reporting (CIAR)”, dated July 21, 2017. The training is currently available at:
<https://securityawareness.usalearning.gov/cidod/index.html>

8. Annual OSD Records and Information Management Training IAW DoD Records Management Program, DoDI 5015.02 dated February 24, 2015.
9. Antiterrorism (AT) Level 1 Training. IAW DoDI O-2000.16-V1, “DoD Antiterrorism Program Implementation” dated, November 17, 2016, Change 3, May 7, 2021. The training is currently available at: <https://jkodirect.jten.mil/> (JS-US007).

The Contractor shall provide a copy of its employee(s)’ training certificates to the COR to meet the mandatory training requirements.